

Court No. - 39

Case :- WRIT - C No. - 2277 of 2021

Petitioner :- Smt.Ragini And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Abhay Raj Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioners, Sri Baleshwar Chaturvedi, learned counsel for respondent nos.4 and 5 and learned Standing Counsel for State-respondent nos.1, 2 and 3.

The instant petition has been filed seeking following reliefs :-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the entire recovery proceedings against the petitioners in pursuance of the recovery citation dated 15.11.2016 issued by the Tehsildar, Tirwa, District-Kannauj/Respondent no.3 as well as the subsequent bills issued by the respondent electricity department.

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondents not to recovery any amount from the petitioners as arrears of bill amount/revenue on the basis of the recovery Citation dated 15.11.2016 issued by the Respondent no.3."

Learned counsel appearing on behalf of respondent nos.4 and 5-Power Corporation has raised a preliminary objection that demand notice dated 31.10.2016 was issued against the petitioner for recovery of Rs.59,973/- as electricity dues till up to 23.02.2015 but the petitioner had not explained the delay in approaching this Court against the aforesaid recovery citation, hence, he does not deserve indulgence by this Court. However, in case if he wants to deposit the dues in installment, he may approach the concerned authority i.e. respondent no.4 under the provisions of Clause 6.14 of the Electricity Supply Code, 2005.

Learned counsel for the petitioners had not disputed the aforesaid contention and prays that he is ready to deposit the entire dues in easy installments and hence, some direction may be given by this Court in this regard to respondent no.4.

In view of aforesaid submissions, without entering into the merits of the case, we dispose of this writ petition with a direction to the petitioners to move a representation under Clause 6.14 of the Electricity Supply Code, 2005 before respondent no.4 raising their grievances for payment of electricity dues in easy installments within two weeks from today and in case, said representation is moved, the same shall be considered and decided by respondent no.4 by passing an appropriate, reasoned and speaking order, as expeditiously as possible, preferably within a period of four weeks thereafter.

On deposit of first installment as may be fixed by respondent no.4, electricity connection of the petitioners shall be restored, subject to the condition that further easy installments shall be paid by the petitioners within the prescribed period as may be fixed. In case of default in payment, the petitioners shall not be entitled to the benefit of this order.

Order Date :- 28.1.2021
Manish Himwan